

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
MARY AIDA REED-LUCE) **Docket No: MH 02-0903**
License No. 068-0000199)

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COMES the State of Vermont, through State Prosecuting Attorney, Edward G. Adrian, and the Respondent, Mary Aida Reed-Luce, LCMHC, who stipulate and agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners ("Board") has jurisdiction to investigate and adjudicate complaints of unprofessional conduct pursuant to 26 V.S.A. §§3263 and 3271; 3 V.S.A. §§129 and 129a; the Office of Professional Regulation's and the Board's Administrative Rules.
2. Conduct which evidences unfitness to practice clinical mental health counseling is unprofessional conduct upon which the Board can base disciplinary action. 26 V.S.A. §3271(a)(3).
3. Willfully making or filing false reports or records in the practice of the profession; willfully impeding or obstructing the proper making or filing of reports or records or willfully failing to file the proper reports or records is unprofessional conduct upon which the Board can base disciplinary action. 3 V.S.A. §129(a)(7).
4. Failure to conform to the essential standards of acceptable and prevailing practice is unprofessional conduct upon which the administrative law officer can base disciplinary action. 3 V.S.A. §129a(b)(2).
5. Failure to comply with the provisions of state statutes or rules governing the practice of the profession is unprofessional conduct upon which the Board can base disciplinary action. 3 V.S.A. §129a(a)(3).
6. Certified counselors recognize their limitations and provide services or use techniques for which they are qualified by training and/or supervision. Certified counselors recognize the need for a seek continuing education to assure competent services. National Board for Certified Counselors ("NBCC"), Code of Ethics, Section A, 7.

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7. Records of the counseling relationship, including interview notes, test data, correspondence, audio or visual tape recordings, electronic data storage, and other documents are to be considered professional information for use in counseling. Records should contain accurate factual data. The physical records are property of the certified counselors or their employers. NBCC, Code of Ethics, Section B, 5.

8. Because many types of assessment techniques exist, certified counselors must recognize the limits of their competence and perform only those assessment functions for which they have received appropriate training or supervision. NBCC, Code of Ethics, Section D, 1.

Factual Allegations

9. The Respondent, Mary Aida Reed-Luce, is licensed in the State of Vermont as a Clinical Mental Health Counselor under License Number 068-0000199.

10. Respondent was originally licensed on June 16, 1994 and Respondent's license is currently set to expire on January 31, 2007.

11. On August 6, 2003, the Respondent wrote a letter to the Franklin County Family Court on behalf of the Complainant's ex-wife recommending that their children be seen by an independent counselor. The Respondent based the letter upon her conversations with the ex-wife and the ex-wife's typed notes of records hand written by their children's psychologist, Regina Roussin. The Respondent never interviewed the father, the children or Ms. Roussin. Additionally, Ms. Roussin advised State Investigator Brenda Tetrault that the typed notes had been changed from her version and a different interpretation and conclusion of the notes had been stated.

12. The Respondent, in her letter to the court, states that she has had the "benefits of studying reports submitted by Child counselor, Regina Roussin". However, there is no reference to any reports done by Ms. Roussin in the notes.

13. The Respondent states in the letter that Ms. Roussin is biased in favor of the father. The Respondent never spoke to Ms. Roussin, and Ms. Roussin's notes do not support this claim.

14. The Respondent states in the letter that there were no issues while the children visited with the mother at the Family Center. On information and belief, there were, in fact, issues. The Respondent never attempted to verify this information with the center, but relied on the ex-wife's version.

15. Further, throughout the letter, the Respondent makes judgments of the parents without any supporting documentation.

16. This Stipulation is neither an admission of liability by the Respondent nor a concession by the State of Vermont that its charges are not well founded. To avoid

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delay, uncertainty, inconvenience, and expense of protracted litigation of the charges below, the Parties reach a full and final Stipulation pursuant to the charges outlined in the docket number listed in the above referenced caption.

Charges

17. The State charges that the acts, omissions and/or circumstances described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of:

- i. 26 V.S.A. §3271(a)(3); and
- ii. 3 V.S.A. §129a(a)(7); and
- iii. 3 V.S.A. §129a(b)(2); and
- iv. 3 V.S.A. §129a(a)(3); and
- v. NBCC, Code of Ethics, Section A, 7; and
- vi. NBCC, Code of Ethics, Section B, 5; and
- vii. NBCC, Code of Ethics, Section D, 1.

Understandings

18. Respondent understands that the Allied Mental Health Practitioners Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.

19. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced her rights to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.

20. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.

21. Respondent voluntarily enters this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing the Stipulation and Consent Order.

22. Respondent voluntarily waives her right to a contested hearing before the Allied Mental Health Practitioners Board and waives any right to appeal from this Stipulation and Consent Order.

23. Respondent agrees that the Order set forth may be entered by the Board.

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ORDER

Based upon the stipulation above, it is **ORDERED AND ADJUDGED** by the Board of Allied Mental Health Practitioners as follows:

A. Respondent, by her acts as set forth above, has engaged in unprofessional conduct pursuant to, and in violation of:

- i. 26 V.S.A. §3271(a)(3); and
- ii. 3 V.S.A. §129a(a)(7); and
- iii. 3 V.S.A. §129a(b)(2); and
- iv. 3 V.S.A. §129a(a)(3); and
- v. NBCC, Code of Ethics, Section A, 7; and
- vi. NBCC, Code of Ethics, Section B, 5; and
- vii. NBCC, Code of Ethics, Section D, 1.

B. The Board of Allied Mental Health Practitioners hereby **CONDITIONS** Respondent's license for a minimum period of **TWO YEARS** commencing with the date of entry of this Order. The **CONDITIONS** are as follows:

1. Supervision. The Respondent shall engage in supervision, for a minimum period of two (2) years commencing with the date of entry of this Order. Supervision shall be with a licensed mental health practitioner approved by the Board. The Respondent shall submit the curriculum vitae of the potential supervisor, along with a letter from the supervisor indicating her/his willingness to provide clinical supervision; and disclosing any previous professional, community, or personal relationship the potential supervisor has had with the licensee prior to this request, and indicating that they have read, and understand, the Charges and Order.

(a) The supervisor's first role shall be to review the Respondent's current caseload. If the supervisor thinks that there are changes that should be made to either improve clinical treatment or avoid ethical violations, the Respondent shall take appropriate steps per the approval of the supervisor.

(b) Respondent's program of supervision shall involve not less than one hour of supervision for every eighty hours of client contact. If, for any reason, the supervisor deems it necessary to end the supervisory relationship with Respondent, the supervisor shall immediately notify the Board of such termination of the supervisory relationship and the reason therefore. If such termination occurs,

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Respondent shall immediately undertake to establish a supervision relationship with a license professional acceptable to the Board or its designee and will not be required to suspend her practice if such arrangements are made and approved within a reasonable period of time, not to exceed two months. If the process exceeds two months, Respondent shall not engage in the further practice of mental health counseling until a new supervisor has been approved by the Board.

(c) Reports from Supervisor. Within one (1) month of the Board approval of Respondent's supervisor and quarterly thereafter for the period the conditions are in place, Respondent shall cause her supervisor to submit to the Board an evaluation of Respondent's performance and attendance during that quarter. This report shall be submitted in writing on the supervisor's letterhead.

(d) The Board or its designee shall have full access to information from any supervising professional related to the matters set out above. In addition, substantive detailed reports by the supervising professional shall be submitted quarterly to the Board. The report shall address the Respondent's compliance with the laws and rules of the profession, and include a brief summary of all supervision contacts.

2. Ethics Course. Respondent shall, at her own expense, complete one (1) three credit graduate level ethics course. The course must be pre-approved by the Board. Respondent must submit written documentation (certificate of completion, etc.) to verify same to the satisfaction of the Board or its designee. Respondent shall complete this course within six (6) months of the date of entry of this Order.

3. Violation of the Consent Order. If Respondent violates the terms of this Stipulation and Consent Order in any respect, the Board, after giving Respondent notice and an opportunity to be heard, may revoke the terms of the conditional license status and take further disciplinary action. If a complaint or charges are filed against Respondent during the term of this Consent Order, the conditioned period shall be extended until the matter is final.

4. Out of State Practice/Residence. Before any out-of-state practice or residence can be credited toward fulfillment of these terms and conditions, Respondent shall first obtain approval from the Board prior to Respondent leaving the State of Vermont. If Respondent fails to receive such approval before leaving the State, none of the time spent out-of-state will be credited toward the fulfillment of the terms and conditions of this Consent Order. The Board will approve out-of-state practice so long as the Respondent can still comply with the provisions of this Consent Order.

5. Notification to Other States. In the event that the Respondent is licensed as a mental health counselor in any other state(s), she must inform the licensing board of the state(s) in which the Respondent is licensed of the conditional status of her Vermont license within thirty (30) days of the date of entry of this Order. If the Respondent fails to provide such notification, it will be considered a violation of this Order.

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6. Completion of Conditional Period. After the conditional period, the Respondent may petition the Board to remove any and all conditions on her license. The Respondent must present proof that she has fully complied with the terms of this Order.

C. Respondent shall bear the cost of compliance with the steps which Respondent has agreed to undertake pursuant to this Consent Order.

D. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).

E. This Stipulation and Consent Order will remain part of the Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

STATE OF VERMONT
SECRETARY OF STATE

Dated: 6/21/05

By: [Signature]
Edward G. Adrian
State Prosecuting Attorney

MARY AIDA REED-LUCE
RESPONDENT

Dated: 6/9/05

By: Mary Aida Reed-Luce
Mary Aida Reed-Luce

APPROVED AS TO FORM:

ATTORNEY FOR RESPONDENT

Dated: June 9, 2005

By: O. Whitman Smith
O. Whitman Smith, Esq.

APPROVED AND SO ORDERED:

VERMONT BOARD OF ALLIED
MENTAL HEALTH PRACTITIONERS

Dated: 8-18-05

By: [Signature]
Chairperson

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Date of Entry: 8/19/05

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IN RE:)
MARY AIDA REED-LUCE) **Docket No: MH 02-0903**
License No. 068-0000199)

SPECIFICATION OF CHARGES

NOW COMES the State of Vermont and makes the following Charges against the Respondent, Mary Aida Reed-Luce, LCMHC:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners ("Board") has jurisdiction to investigate and adjudicate complaints of unprofessional conduct pursuant to 26 V.S.A. §§ 3263 and 3271; 3 V.S.A. §§129 and 129a; the Office of Professional Regulation's and the Board's Administrative Rules.
2. Conduct which evidences unfitness to practice clinical mental health counseling is unprofessional conduct upon which the Board can base disciplinary action. 26 V.S.A. §3271(a)(3).
3. Willfully making or filing false reports or records in the practice of the profession; willfully impeding or obstructing the proper making or filing of reports or records or willfully failing to file the proper reports or records is unprofessional conduct upon which the Board can base disciplinary action. 3 V.S.A. §129(a)(7).
4. Failure to conform to the essential standards of acceptable and prevailing practice is unprofessional conduct upon which the administrative law officer can base disciplinary action. 3 V.S.A. §129a(b)(2).
5. Failure to comply with the provisions of state statutes or rules governing the practice of the profession is unprofessional conduct upon which the Board can base disciplinary action. 3 V.S.A. §129a(a)(3).
6. Certified counselors recognize their limitations and provide services or use techniques for which they are qualified by training and/or supervision. Certified counselors recognize the need for a seek continuing education to assure competent services. National Board for Certified Counselors ("NBCC"), Code of Ethics, Section A, 7.

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7. Records of the counseling relationship, including interview notes, test data, correspondence, audio or visual tape recordings, electronic data storage, and other documents are to be considered professional information for use in counseling. Records should contain accurate factual data. The physical records are property of the certified counselors or their employers. NBCC, Code of Ethics, Section B, 5.

8. Because many types of assessment techniques exist, certified counselors must recognize the limits of their competence and perform only those assessment functions for which they have received appropriate training or supervision. NBCC, Code of Ethics, Section D, 1.

Facts

9. The Respondent, Mary Aida Reed-Luce, is licensed in the State of Vermont as a Clinical Mental Health Counselor under License Number 068-0000199.

10. Respondent was originally licensed on June 16, 1994 and Respondent's license is currently set to expire on January 31, 2007.

11. On August 6, 2003, the Respondent wrote a letter to the Franklin County Family Court on behalf of the Complainant's ex-wife recommending that their children be seen by an independent counselor. The Respondent based the letter upon her conversations with the ex-wife and the ex-wife's typed notes of records hand written by their children's psychologist, Regina Roussin. The Respondent never interviewed the father, the children or Ms. Roussin. Additionally, Ms. Roussin advised State Investigator Brenda Tetrault that the typed notes had been changed from her version and a different interpretation and conclusion of the notes had been stated.

12. The Respondent, in her letter to the court, states that she has had the "benefits of studying reports submitted by Child counselor, Regina Roussin". However, there is no reference to any reports done by Ms. Roussin in the notes.

13. The Respondent states in the letter that Ms. Roussin is biased in favor of the father. The Respondent never spoke to Ms. Roussin, and Ms. Roussin's notes do not support this claim.

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15. Further, throughout the letter, the Respondent makes judgments of the parents without any supporting documentation.

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Charges

16. The acts, omissions and/or circumstances described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of:

- i. 26 V.S.A. §3271(a)(3) (Conduct which evidences unfitness to practice clinical mental health counseling); and
- ii. 3 V.S.A. §129a(a)(7) (Willfully making or filing false reports or records in the practice of the profession; willfully impeding or obstructing the proper making or filing of reports or records or willfully failing to file the proper reports or records); and
- iii. 3 V.S.A. §129a(b)(2) (Failure to conform to the essential standards of acceptable and prevailing practice); and
- iv. 3 V.S.A. §129a(a)(3) (Failure to comply with the provisions of state statutes or rules governing the practice of the profession); and
- v. NBCC, Code of Ethics, Section A, 7; and
- vi. NBCC, Code of Ethics, Section B, 5; and
- vii. NBCC, Code of Ethics, Section D, 1.

Relief Requested

WHEREFORE, the Respondent's license should be revoked, suspended, reprimanded, conditioned or otherwise disciplined.

Dated at Montpelier, Vermont this 22nd day of February 2005.

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SECRETARY OF STATE

By: _____

Edward G. Adrian
State Prosecuting Attorney

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